

to California law. Therefore, Plaintiffs' motion to strike Defendants' affirmative defenses is denied.

7. CU0002183 Adventure Resort Marketing, LLC, (ARM) et al vs. B & W Resorts, Inc., dba Harmony Ridge Resort et al

Plaintiffs' motion to consolidate Case CU0002183 with Case CU0002221 is DENIED.

Procedural Standard

(a) Requirements of motion

(1) A notice of motion to consolidate must:

- (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;
- (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and
- (C) Be filed in each case sought to be consolidated.

(2) The motion to consolidate:

- (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case;
- (B) Must be served on all attorneys of record and all non-represented parties in all of the cases sought to be consolidated; and
- (C) Must have a proof of service filed as part of the motion.

(b) Lead case

Unless otherwise provided in the order granting the motion to consolidate, the lowest numbered case in the consolidated case is the lead case.

(c) Order

An order granting or denying all or part of a motion to consolidate must be filed in each case sought to be consolidated. If the motion is granted for all purposes including trial, any subsequent document must be filed only in the lead case.

(d) Caption and case number

All documents filed in the consolidated case must include the caption and case number of the lead case, followed by the case numbers of all of the other consolidated cases.

Cal. Rules Ct., rule 3.350.

At bar, Plaintiffs failed to file a notice of motion in the later filed case and failed to serve all attorneys of record (only serving Defendants' attorney of record and not Plaintiffs' counsel in the later filed case). The remainder of the motion was otherwise properly filed in the lead case. Given counsel for Plaintiff in CU0002183 submitted a declaration in support of the motion, the Court finds the technical rule violation does not prejudice this Plaintiff. Defendants oppose the motion.

Legal Standard

When cases involving a common question of law or fact are pending in the same superior court, i.e., in the same county, the cases can be consolidated on a party's motion or on the Court's own

motion under Code of Civil Procedure section 1048(a). Two types of consolidation exist: a consolidation for purposes of trial only, where the two actions remain otherwise separate; and a complete consolidation where the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment. *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147. Plaintiffs seek a complete consolidation for all purposes.

To prevail, the movant must establish (1) the cases are pending before the same court, (2) the cases share a common question of law or fact, and (3) the benefits of consolidation outweigh the burdens. See Code Civ. Proc., § 1048(a). In making the decision to grant or deny a consolidation, “the determination is within the discretion of the trial court since it is impossible to foresee all the possibilities of prejudice which might arise from such consolidation.” *General Motors Corp. v. Superior Court of Los Angeles County* (1966) 65 Cal.2d 88, 92.

Discussion

It is undisputed both matters are pending in the Nevada County Superior Court. However, the earlier filed case is assigned to this Department A, whereas CU0002221 is assigned to Judge Tice-Raskin in Department 6 of the Nevada City Branch of the Court. The Court notes the present matter, CU0002183, was originally assigned to Judge Tice-Raskin in Department 6 until Plaintiffs in that matter filed a preemptory challenge on June 24, 2026 asserting Plaintiffs could not have a fair and impartial hearing in front of Judge Tice-Raskin, after which the case was reassigned to Department A. Plaintiffs’ counsel in matter CU0002221 filed no such preemptory challenge. However, as both matters are pending in the same superior court/county, the Court will consider whether the matters share common questions of law or fact and any benefits or burdens associated with consolidation.

Plaintiffs argue the motion to consolidate arises from a common origin of the claim for defamation—the allegations Defendant Bill Sinor, Sr. accused Plaintiff Sean Graham of committing fraud and embezzling funds as part of a conspiracy with Bill Sinor Jr., and such statements were intended to tarnish Plaintiffs’ reputations. However, each case has distinct causes of action. Case No. CU0002221 also alleges causes of action for: (1) Harassment – Hostile Work Environment; (2) FEHA retaliation; (3) Failure to Prevent Discrimination, Retaliation, and Harassment; (4) Breach of Contract – Written; (5) Breach of Contract – Verbal; (6) Breach of Implied Covenant of Good Faith and Fair Dealing; (7) Wrongful Termination in Violation of Public Policy; and (8) Defamation. Case No. CU0002183, on the other hand, solely alleges causes of action for: (1) Breach of Contract and (2) Defamation.

In support of the motion, Plaintiffs essentially contend, because both cases involve a cause of action for defamation, they should be consolidated. The CU0002183 Complaint alleges, “false and defamatory statements included express and implied accusations that Plaintiff had engaged in or been involved in dishonest conduct such as theft of materials belonging to the Company.” CU0002183 Complaint, ¶ 77. The CU0002221 Complaint alleges Plaintiff Sean Graham “commit[ed] fraud and embezzl[ed] funds as part of a conspiracy with Bill Sinor, Jr., and Jon Landon, and expressly threatened to tarnish [h]is reputation in the process,” as well as accusations of “several illegal acts.” CU0002221 Complaint, Att. 1.

Alleging the same cause of action does not make the issues identical, even if some parties overlap. Additionally, the plaintiffs in both cases have alleged factually different and distinct causes of action beyond that of defamation. Consolidating such distinct factual inquiries and legal theories into a single case would tend to greatly increase the complexity of the case risking confusion of the trier of fact, all of which could result in substantial prejudice to all parties. The evidence at trial could easily become quite confusing to a juror as the law and legal theories will be different and involve only some of the same parties and/or facts.

For these reasons, the Court concludes the commonality of some alleged facts yet lack of commonality of legal issues is fatal to Plaintiffs' position consolidation would, overall, be beneficial to either the Court or the parties.

Accordingly, the Court finds any benefit stemming from consolidation would be slight, and any such benefit is far outweighed by the burdens of potential injustice and/or prejudice to some or all of the parties. The Court further finds judicial economy would not be served by consolidation.

Accordingly, the motion to consolidate is DENIED.

**8. CU0002513 TRUCKEE CROSSROADS S.C., LP, a Delaware limited partnership
vs. SIERRA CREST CORPORATION, a Nevada corporation et al**

Appearances required by Defendants, Sierra Crest Corporation dba Blue Zone Sports and Ski James Broman, to show cause as to why Defendants' Answer or, at a minimum, the "Counterclaim" portion of Defendants' Answer should not be STRICKEN for failure to adhere to CCP sections 428.40 and 428.80. More specifically, although using the term "counterclaim" for a cross-complaint does not affect its validity (see, CCP section 428.80), any cross-complaint is to be filed as a separate document and shall not be contained within an answer. See, CCP 428.40. (Defendants should also take note of CCP section 428.50.)

9. CU0002527 Jerome Nocerino vs. Airbnb, Inc. et al

No appearance required. In light of the filed proofs of service, the OSC re dismissal is hereby vacated.

**10. CU0002546 Joann Pennington et al vs. Tahoe Forest Hospital District dba Tahoe
Forest Hospital D/P SNF et al**

No appearance required. On the Court's own motion and in light of the declaration of counsel for Plaintiffs, the OSC re Dismissal is continued to August 21, 2026 at 9:00 a.m. in Department A.

11. CU0002549 PATRICK J. ROMANO vs. AUSTIN SHI-PING WANG

No appearance required. In light of the filed proofs of service, the OSC re dismissal is hereby vacated. However, the proof of service on file fails to indicate notice of the case management